



DISTRICT SAFETY COMMITTEE

Legal Reference: California Code of Regulations, Title 8, Section 3203

PURPOSE: The purpose of this guidance document is to assist member school districts in setting up and maintaining an effective district safety committee.

INTRODUCTION: The purpose of a safety committee is to bring workers and managers together in a cooperative effort to promote safety in the workplace. The committee assists the employer and makes recommendations for change regarding occupational safety issues. It is easy to start a safety committee, but developing an effective one (one that achieves and maintains a safe workplace) requires workers and managers who are committed to achieving that goal.

Legal Requirement: Employers who elect to use a labor/management safety committee to comply with the communication requirements of Section 3203 (a)(3), shall include a system for communicating with employees in a form readily understandable by all affected employees on matters relating to occupational safety, including provisions designed to encourage employees to inform the employer of hazards at the worksite without fear of reprisal. Substantial compliance with this provision includes meetings, training programs, posting, written communications, a system of anonymous notification by employees about hazards, labor/management safety committees, or any other means that ensures communication with employees. You are presumed to be in substantial compliance with subsection (a)(3) if the committee:

1. Meets regularly, but not less than quarterly;
2. Prepares and makes available to the affected employees, written records of the safety issues discussed at the committee meetings and, maintained for review by the Cal/OSOGA upon request. The committee meeting records shall be maintained for at least three years;
3. Reviews results of the periodic, scheduled worksite inspections;
4. Reviews investigations of occupational accidents and causes of incidents resulting in occupational injury, occupational illness, or exposure to hazardous substances and, where appropriate, submits suggestions to management for the prevention of future incidents'

5. Reviews investigations of alleged hazardous conditions brought to the attention of any committee member. When determined necessary by the committee, the committee may conduct its own inspection and investigation to assist in remedial solutions' and
6. Submits recommendations to assist in the evaluation of employee safety suggestions.

COMMITTEE MEMBERS - Title 8 does not specify who could serve on your safety committee. However, organizations that use safety committees seem to have the greatest success with committees made up of equal numbers of employee and management representatives and have a chairperson elected by the representatives. A committee of six to eight people for a medium to large school district will generally be large enough to allow for designation of particular duties to members, but not so big as to make it difficult to conduct meetings and coordinate members' activities. Other matters to consider about whom will serve on the committee:

- Employee representatives can volunteer to serve on the committee or their peers can elect them. If your collective bargaining agreement has procedures for selecting representatives, follow those procedures
- Employer representatives represent the employer. You can have more employee representatives on the committee than employer representatives (management) if no one objects. You can choose any employee to serve as a representative.
- Representatives' jobs should reflect the districts major departments and or job classifications such as instruction, workers' compensation, business services and human relations.
- Representatives must be paid their regular wages for safety committee meetings and safety-related training sessions.
- Each representative should serve at least one year on the committee.

Your safety committee must have a chairperson and someone to take minutes at each meeting. The committee doesn't have to have a vice-chair; however, someone should be available to prepare an agenda and conduct committee business in the chair's absence. The following table summarizes the duties of the chairperson, vice-chair, recorder, and other committee representatives.

Chairperson

- Schedules monthly meetings
- Develops agendas for meetings
- Conducts monthly meetings

Vice-Chair

- Assumes chair's duties when the chair is absent
- Coordinates training for new representatives
- Performs other duties assigned by the chair

Recorder

- Takes minutes at each meeting
- Distributes copies of minutes to representatives
- Posts minutes for other employees to review
- Maintains the safety-committee file
- Keeps minutes and agendas on file for three years

Other committee representatives

- Report employees' safety concerns to the committee
- Report accidents, near miss incidents, and unsafe workplace conditions to the committee
- Report back to employees on their suggestions, concerns, reports
- Suggest items to include in the monthly meeting agenda
- Encourage employees to report workplace hazards and suggest how to control them
- Establish procedures for conducting workplace inspections and for making recommendations to management to eliminate or control hazards
- Help management evaluate the district
- S safety program and recommend how to improve it
- Establish procedures for investigating the causes of accidents and near-miss incidents
- Assist in communicating committee activities to all employees
- Set example by working safely
- Other duties as assigned by the chair

COMMITTEE GOALS – The purpose of the safety committee is to bring workers and managers together in a cooperative effort to promote safety in the workplace. But you'll need to narrow the focus, set goals, and specify what the committee will do. Start with a few written paragraphs that states why the committee was established and what it intends to accomplish.

MEETING PRODEDURES – Committees are only as effective as their meetings, so running a successful meeting should be taken seriously and it should be a priority. Meetings can be formal or informal, but typically opting for the middle ground is satisfactory. Some districts are required to conduct all committee meetings following Robert's Rules of Orders if it is considered a public meeting.

Require Participation Set a regular schedule for the meetings. Make sure each representative gets a copy of the schedule and copy is posted at each worksite. Each representative must help the committee accomplish its goals.

Agenda and Minutes The agenda outlines the meeting's discussion topics. The chairperson should understand the agenda topics and keep discussion focused on them. Send copies of the agenda to representatives a few days before the meeting so they can review it and suggest changes or additions. Accurate meeting minutes are important because they document the committee's accomplishments. The representative who has this responsibility should be able to grasp the main points of a discussion and record them quickly.

Meeting minutes should include the following:

- A brief summary of the discussion of each topic
- A copy of committee reports, evaluations, and recommendations
- A copy of management's response to committee recommendations

Remember to send a copy of the minutes to each representative promptly after the meeting and to post a copy at each worksite on the safety bulletin board where other employees can see it. Keep a copy of each meeting's minutes on file for three years.

COMMITTEE MEETING ACTIVITIES AND TOPICS – A committee meeting gives you the opportunity to discuss with your employee representatives the general matters about which you must consult your workforce.

To ensure you cover all relevant issues, the committee should have some standing items for the agenda and allow for other items to be added as necessary. Standing items are required by Cal/OSHA such as:

- Statement of Purpose and Objectives – Does not have to be on every agenda, but it's a good idea to help keep members focused
- Attendance – Document who was in attendance
- Employee Accidents – Review investigations of occupational accidents (and near-hits) and causes of incidents resulting in occupational injury, occupational illness, or exposure to substances and, where appropriate, submits suggestions to management for the prevention of future incidents
- Workers' Compensation – Review statistics and claim costs (do not use employee names)
- Safety Concerns and Suggestions – Review and discuss safety suggestions and/or concerns from sites, committee members, employees, and/or anonymous

- Safety Training – Review and discuss safety related inspection activities within the district
- Incentive Awards – Discuss and award as necessary. In order for an incentive program to work, the incentive has to be of value to the person receiving it. Employees on your safety committee can provide insight into what motivates your workers and what incentives they might find valuable—and, often, those incentives cost are less than anything you would have thought of on your own!
- Safety Budget – Review and discuss account balance(s), list expenditures in minutes, approve expenditures, etc.
- Date – Document future meeting date(s)
- Other – Student accidents, drills, emergency preparedness, etc.

If the safety committee is discussing accidents, the aim is to stop them happening again, not to give blame. Committees should:

- Look at the facts in an impartial way
- Consider what precautions might be taken
- Recommend appropriate actions
- Monitor progress with implementing the safety interventions

Only the planning and effective leadership of management and the safety committee can build a program that lasts. The safety committee should be an effective problem-solving team, providing guidance and leadership in safety matters.

PROHIBITION OF HARASSMENT

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- I. ~~The Tuscaloosa County Board of Education prohibits harassment against any employee, applicant for employment, student, or student applicant based upon race, color, religion, gender, age, ethnicity, national origin, marital status, disability, political or religious beliefs, or social and family background. This policy also applies to non-employment volunteers who work subject to the control of school authorities.~~
- II. ~~The Superintendent shall develop procedures which shall be used by persons alleging harassment.~~
- III. ~~Sexual Harassment by Students~~

The Tuscaloosa County Board of Education desires to maintain an academic environment in which all students are treated with respect and dignity. A vital element of this atmosphere is the Board's commitment to equal opportunities and the eradication of discriminatory practices including sexual harassment. Sexual harassment is specifically prohibited by state and federal law and instances of harassment may result in both civil and criminal liability on the part of the individual harasser as well as the Tuscaloosa County Board of Education. Sexual harassment's destructive impact wastes human potential, demoralizes students, and perpetuates the tendency toward further unacceptable behavior. For these reasons, the Tuscaloosa County Board of Education forbids harassment against any student on the basis of gender. The Board will not tolerate harassment activity by any of its students.

A. ~~Definition~~—Sexual harassment consists of unwelcome sexual advances, requests for sexual favors, and other inappropriate verbal or physical conduct of a sexual nature, wherever such harassment occurs on school property or at a school-sponsored event, that is aimed at coercing an unwilling person into a sexual relationship whether or not it involves physical contact, or that substantially interferes with a student's academic performance, or creates an intimidating, hostile, or offensive school environment.

Examples of sexual harassment may include but are not limited to the following:

1. ~~Verbal harassment or abuse of a sexual nature;~~
2. ~~Subtle pressure for sexual activity;~~
3. ~~Repeated remarks to a person with sexual or demeaning implications, e.g., a person's body, clothes or sexual activity;~~
4. ~~Unwelcome or inappropriate physical contact such as patting, pinching, or unnecessary touching;~~
5. ~~Suggesting or demanding sexual involvement accompanied by implied or explicit threats;~~
6. ~~Display of sexually suggestive objects, pictures, or written materials;~~
7. ~~Sexual harassment does not refer to occasional compliments or welcomed interactions of a socially acceptable nature.~~

B. ~~Specific Prohibition~~—It is sexual harassment for a student to subject another student or a school employee to any unwelcome conduct of a sexual nature on school property or at a school-sponsored event. Students who engage in such conduct shall be subject to penalties as described herein.

C. ~~Procedures~~—Any student who alleges sexual harassment by an employee or another student should report the harassment to the building Principal, assistant Principal(s), guidance counselor(s) or Superintendent' designee. Filing of a complaint or otherwise reporting sexual harassment will not affect the student's status, extracurricular activities, grade or any other assignments. The complaint should be in writing, state the act or acts, state the date(s), state the names of witnesses, and be signed by the complainant.

1. ~~The right to confidentiality, both of the complainant and of the accused, will be respected, consistent with the Board's legal obligations and with the~~

necessity to investigate allegations of misconduct and take corrective action when this conduct has occurred.

2. In determining whether alleged conduct constitutes sexual harassment, the totality of the circumstances, nature of the conduct, and the context in which the alleged conduct occurred will be investigated. The Superintendent or designee has the responsibility of investigating and resolving complaints of sexual harassment.

D. Penalties—A substantiated charge against a student shall subject that student to disciplinary action consistent with the Code of Student Conduct.

IV. ~~Sexual Harassment by Employees — Definition — Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors and other inappropriate verbal, non-verbal or physical conduct of a sexual nature when:~~

- A. Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment or a student's education;
- B. Submission to or rejection of such conduct by an individual is used as the basis for employment or academic decisions affecting such individual;
- C. Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or student's educational performance or creating an intimidating, hostile or offensive work or school environment.

D. Examples of sexual harassment may include, but are not limited to, the following:

1. Verbal harassment or abuse of a sexual nature;
2. Subtle pressure for sexual activity;
3. Repeated remarks to a person with sexual or demeaning implications, e.g., a person's body, clothes or sexual activity;
4. Unwelcome or inappropriate physical contact such as patting, pinching, or unnecessary touching;
5. Suggesting or demanding sexual involvement accompanied by implied or explicit threats;
6. Display of sexually suggestive objects, pictures, or written materials.

E. Sexual harassment does not refer to occasional compliments or welcomed interactions of a socially acceptable nature.

F. Any suspected child abuse shall be reported in accordance with state law.

G. Specific Prohibition — Sexual harassment in any form is prohibited. All claims of sexual harassment will be subject to prompt and thorough investigation.

1. It is sexual harassment for an administrator or supervisor to use his/her authority to solicit sexual favors or attention from subordinates, including, but not limited to, incidents when the subordinate's failure to submit will result in adverse treatment, or when the subordinate's acquiescence will result in preferential treatment. Administrators and supervisors who either engage in sexual harassment or tolerate such conduct by other employees shall be subject to penalties.

- ~~2. It is sexual harassment for a non-administrator and non-supervisory employee to subject another such employee to any unwelcome conduct of a sexual nature. Employees who engage in such conduct shall be subject to penalties.~~
 - ~~3. It is sexual harassment for a Tuscaloosa County Board of Education employee to use his or her authority to solicit sexual favors or attention from students. Board employees who either engage in sexual harassment or tolerate such conduct by other employees shall be subject to penalties.~~
- ~~H. Procedures — It is the responsibility of any employee to promptly report any occurrence of alleged sexual harassment. This policy on sexual harassment shall be communicated to all employees to inform them that a procedure exists for reporting claims of sexual harassment, that management will promptly investigate all alleged incidents of sexual harassment, and appropriate corrective action will be taken. Complaints should be reported to the Superintendent or designee and should be in writing, state the act(s), state the date(s), state the name(s) of witnesses and be signed by the complainant.~~
- ~~Investigations will be conducted with discretion. The right to confidentiality, both of the complainant and of the accused, will be respected, consistent with the Board's legal obligations and with the necessity to investigate allegations of misconduct and take corrective action when this conduct has occurred. Claims found to be factually supported will be promptly acted upon. No employee or student shall be retaliated against, in any manner, for reporting conduct which is believed to be a violation of this rule or for participating in an investigation of a possible violation of this rule.~~
- ~~In determining whether alleged conduct constitutes sexual harassment, the totality of the circumstances, nature of the conduct, and the context in which the alleged conduct occurred will be investigated. The Superintendent or designee has the responsibility of investigating and resolving complaints of sexual harassment.~~
- ~~I. Penalties — Necessary disciplinary action, up to and including termination, may result if sexual harassment occurs. Any employee who makes false allegations of sexual harassment will be subject to appropriate disciplinary action, up to and including termination.~~

REFERENCE(S): CODE OF ALABAMA 16-8-23
TITLE IX OF EDUCATION AMENDMENTS OF 1972
PUBLIC LAW 100-960, PUBLIC LAW 102-143

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—FORMERLY: GAJDBH, JN